

26STCV14240 26STCV14240

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-22

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Case Number: 26STCV14240 Hearing Date: July 22, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:51 PM on July 21, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 21, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

TENTATIVE RULING:

The pro hac vice application of Neil Cartusciello is DENIED WITHOUT PREJUDICE, for the following reasons:

1. The application does not comply with the requirements for verification. The application states: "I declare under penalty of perjury that the foregoing is true and correct." However, it does not state the place of execution, nor that it is so certified or declared under the laws of the State of California. (Code Civ. Proc. § 2015.5.)
2. The notice requirements of Code of Civil Procedure sections 1005 and 1010.6 were not met: only 15 court days' notice was given by email, rather than the required 16 court days (CCP § 1005), plus 2 additional days for electronic service (CCP § 1010.6).
3. There is no proof of service on the State Bar of California at its San Francisco office. (Cal. R. Ct. 9.40(c)(1).)
4. There is no proof of payment of required fees to the State Bar of California. (Cal. R. Ct. 9.40(e).)
5. The Rule of Court governing eligibility for pro hac vice admission provides that to be eligible, an applicant cannot be a resident of the State of California, cannot be regularly employed in the State of California, and cannot be regularly engaged in substantial business, professional, or other activities in the State of California. (Cal. R. Ct. 9.40(a)(1) - (3).) The application does not clearly state all three: The application indicates that Mr. Cartusciello is not regularly engaged in the practice of law or other business in the State of California.
6. The application identifies two other pro hac vice applications in the past two years, but does not indicate whether the applications were granted. (Cal. R. Ct. 9.40(d)(5).)

The application may be renewed if the foregoing matters are addressed.